

Ref No.: BD-CW-SAMCO-ACE-LET-STR-017

09-October-2025

To: ACE Project Management | Moharram Bakhoun

Attention: Eng. Abdelaziz Mohamed (Project Manager)

Project Name: The Big Business District.

Contract/Package: Construction Works.

Subject: Response to Variation Instruction No. (ROYA-BIG-2025-VI-001)

Regarding: Protection and Supporting Works Around Existing Utilities



Dear Sir,

With reference to the above-mentioned Variation Instruction, and in line with our commitment to transparency and to clarifying the contractual position in accordance with the provisions of the contract concluded between our two parties, we would like to inform you of the following:

The referred instruction includes protection and supporting works for existing utilities. Upon reviewing the Contract Documents and Appendix 1.2 of the Tender Documents, it was explicitly stated under the clause "Exclusions from the Accepted Contract Amount" the following item: "Relocation or protection of existing utilities."

Consequently, these works fall outside the scope of the current contract and have neither been priced nor included within the original contract value.

We would also like to clarify that during the project's inception phase, we, as the Main Contractor—driven by our technical and professional responsibility—conducted a comprehensive study of the site requirements. At that time, we presented an integrated technical solution based on a Shoring System as the optimal choice for addressing challenges related to existing utilities in high-risk areas.

Driven by our belief in our role as a partner in the project's success, this solution was proposed despite its higher cost and longer execution period compared to traditional methods, due to the superior levels of safety and stability it provides for adjacent structures and its assurance of implementation safety—ultimately serving the project's overall best interest.

We would like to highlight that the proposed execution method – involving wires, curb stones, and temporary plate forms – is not clearly defined from an engineering standpoint and may not align with standard practices so, we do apologize on starting it.

Based on the foregoing, we confirm that the referred Variation Instruction represents a completely new and additional scope of work, and does not constitute a modification or extension of existing works under the original contract.

Furthermore, the unique nature of these works, involving exceptional technical, execution, and safety challenges, necessitates a fundamentally different methodology for execution and planning compared to the core scope of work. Therefore, their execution is not feasible under the current contract's duration or cost structure.

Nevertheless, stemming from our consistent commitment to the successful completion of the project, we reaffirm our readiness to study any alternative proposal you may put forward—provided that such a proposal includes a clear and fair mechanism for allocating the specific responsibilities, risks, and costs associated exclusively with these works, to be formalized within the framework of a separate and independent agreement from the main contract.

Please accept our highest regards and respect.

Best regards,

Eng./ Mohammed Sami Mohammed
Project Director
SAMCO National Construction

